

8. 9:00 AM CASE NUMBER: C24-02590
CASE NAME: NEXTGEAR CAPITAL, INC. VS. FARHAD AMINZADA
HEARING ON SUMMARY MOTION
FILED BY: NEXTGEAR CAPITAL, INC.
TENTATIVE RULING:

The Court continues the hearing on this motion to February 23, 2026, at 9:00 a.m.

9. 9:00 AM CASE NUMBER: C25-00549
CASE NAME: JESUS MUNGUIA VS. LAS MONTANAS MARKET, INC.
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: MUNGUIA, JESUS
TENTATIVE RULING:

Fletcher B. Brown (“Counsel”) filed a Motion to be Relieved as Counsel on September 10, 2025 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on January 26, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Jesus Munguia (“Client”).

The supporting declaration filed by Counsel indicates that Counsel “CAN NO LONGER EFFECTIVELY PROSECUTE THIS CASE” such that Counsel’s withdrawal is necessary. See Declaration filed September 10, 2025, ¶2. Counsel’s Client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-01030
CASE NAME: SPRING DAUGHTRY VS. PAULA TINT
***HEARING ON MOTION IN RE: FOR LEAVE TO INTERVENE**
FILED BY: CENTRAL CONTRA COSTA TRANSIT AUTHORITY
TENTATIVE RULING:

Third party and proposed intervenor Central Contra Costa Transit Authority (“Intervenor”) filed a Motion for Leave to Intervene on September 9, 2025 (the “Motion for Leave to Intervene”). The Motion for Leave to Intervene was set for hearing on January 26, 2026. The motion was duly served.

Background

Intervenor recites that it is the employer of plaintiff Spring Daughtry, and due to his work-related

injuries, which forms the subject matter of this action, Intervenor provided workers' compensation benefits to or on plaintiff's behalf such that it has the right to intervene in this action.

Analysis

The Motion for Leave to Intervene is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion for Leave to Intervene is GRANTED.
2. Intervenor to prepare and submit a proposed order after hearing.

11. 9:00 AM CASE NUMBER: C25-01056
CASE NAME: AUDREY WILLIAMS VS. ROLLING HILLS MEMORIAL PARK
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY:
TENTATIVE RULING:

Defendant, Rolling Hills Memorial Park, filed this motion to compel arbitration after plaintiff, Audrey Williams, filed her complaint against it. A court must order arbitration if it determines that a valid agreement to arbitrate exists. Here, such agreement exists, as discussed below. The motion is **granted**. The Court stays the action and sets a case management conference on July 28, 2026 at 8:30 a.m. for an update on the status of arbitration.

Background

Plaintiff alleges that she went to Rolling Hills Memorial Park on April 14, 2023 to pay respects to her mother. (Complaint, ¶32.) Upon arrival, plaintiff had trouble locating her mother's burial site. (*Id.* at ¶33.) When she contacted defendant's employees, it was revealed that a grave marker for another deceased person was mistakenly placed on plaintiff's mother's burial site. (*Ibid.*) The incident is believed to be the "tip of the iceberg" of misconduct. (*Id.* at ¶31.) Defendant has repeatedly made mistakes on headstones, burials, locations of body, etc., for years. (*Ibid.*) It has continued a pattern of poorly maintaining its entire property and providing insufficient security, such that headstones are covered with debris, families cannot find their loved ones, and graves are vandalized and offerings and ornaments stolen. (*Ibid.*) Defendant has concealed damage and/or errors from loved ones and failed to respond to or address known issues in a timely manner. (*Ibid.*)

Plaintiff filed this lawsuit on April 14, 2025, alleging seven causes of action including: (1) Breach of Contract; (2) Negligence; (3) Violations Of Business & Professions Code § 17200, Et Seq.; (4) Violations Of Business & Professions Code § 17500, Et Seq.; (5) Nuisance; (6) Trespass; and (7) Intentional and/or Negligent Infliction Of Emotional Distress.

In response, defendants moved to compel arbitration under the 2009 agreement, arguing that plaintiff signed an agreement containing an enforceable arbitration provision. Rolling Hills argues the Federal Arbitration Act governs enforceability, and that the agreement is enforceable.

In support of the motion, defendants submit a declaration from John C. Barr ("Barr Decl."),